



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

OCT 10 2000

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 10683
(SECOND REVISION)

EXPIRATION DATE: September 30, 2002

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Crompton Corporation
(Former Grantee: Witco Corporation)
Middlebury, CT
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of certain Class 3 and 4.2 materials in non-specification packaging similar to a DOT Specification 51 portable tank. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.242 and 173.244.
5. BASIS: This exemption is based on the application of Crompton Corporation, (formerly the Witco Corporation) dated September 20, 2000, submitted in accordance with § 107.109.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Aluminum Alkyls	4.2	UN3051	I
Aluminum alkyl halides	4.2	UN3052	I
Flammable liquids, n.o.s.	3	UN1993	II, III

7. SAFETY CONTROL MEASURES:

- a. Packaging prescribed are 50 non-DOT specification steel portable tanks that conform to the DOT 51 portable tank specification except that the tanks are not ASME Code "U" stamped. No new construction is authorized after December 1, 1992. Serial numbers are on file with the office of Hazardous Materials Exemptions and Approvals (OHMEA). The portable tanks are mounted and secured on a 20 foot ISO flat rack with end frames and are in conformance with the following Schering drawings and associated specifications on file with the OHMEA.

Schering Tank Drawings

T1K1 089359 3	19 JUL 89.
T1K1 103511 0	13 FEB 91.
T1K1 082951 2	8 AUG 88.

Schering ISO Frame Drawings

T1K1 064366 3	3 MAR 91.
T1K1 064360 0	28 FEB 91.

In addition, these tanks shall meet the following design requirements:

- (1) Maximum allowable working pressure: 175 psig. (12.1 Bar)
- (2) Relief valve setting: 192 psig. (13.3 Bar)
- (3) Relief valve capacity: 1,132,364 SCFH. (32065 m³/hr)

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- (4) All safety relief devices shall communicate with the vapor space when the tank is fully loaded.
- (5) Nominal water capacity: 497 U.S. gallons. (1880 liters)
- b. TESTING - Each portable tank must be reinspected and retested once every two years in accordance with § 173.32 as required for DOT 51 Specification DOT portable tanks.
- c. OPERATIONAL CONTROLS -
 - 1. Each tank must be securely mounted within an ISO frame for transportation.
 - 2. Each portable tank must be plainly marked on both sides near the center in letters at least two inches high on a contrasting background, "DOT-E 10683, maximum working pressure 175 psig."
 - 3. The tanks must be pressurized to a minimum pressure of 7 psig with nitrogen before shipment.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.
- b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel.

10. MODAL REQUIREMENTS:

- a. A current copy of this exemption must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this exemption.
- b. Shipments by rail must be in compliance with the requirements of § 174.63. Portable tanks may not be

transported on flatcars or on flat trailers on flat cars, except under conditions approved by the Federal Railroad Administration.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

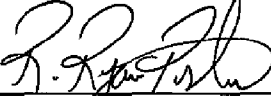
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

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The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: AM